

Missouri false-impersonation correction filing guide

Stop this self-help route and seek legal assistance if any of these conditions applies: The impersonator is a family member, a former partner or someone else known to the participant, which changes both the available evidence and what the participant should do next.; A conviction was entered under the participant's identity, particularly where a sentence was served or supervision imposed.; The participant has been arrested, detained or denied employment, housing or a licence because of the false record.; The prosecuting attorney or a named agency disputes the account, or the court sets a contested hearing.; The participant is unsure whether their situation is false impersonation under § 575.120 or mistaken identity under § 610.145, because the two run in different courts on different forms.; The record appears on a private background check after the court order, which a Missouri court order does not reach.; The participant is contemplating a civil claim against the impersonator or against an agency.; There are false records in more than one Missouri county, or in another state.; The participant is not a United States citizen or there is any immigration consequence.; The participant cannot obtain fingerprint cards from any local agency.

If you reported identity theft or are advised to do so, obtain the police report and FTC identity-theft report at identitytheft.gov. These can corroborate the record; neither is required by section 575.120.4. A Missouri court order does not itself reach credit-bureau records.

Prepared for Alexandria Louise Montgomery Example. Synthetic review fixture only.

This is correction of records caused by false impersonation under section 575.120.4, using the civil procedure in section 610.123. Someone else was arrested or convicted under your identity. It does not erase that person's actual offense; it expunges your falsely ascribed identifying factors and corrects the record. It is different from CR301 mistaken identity after dismissal/acquittal and from general section 610.140 expungement.

File the verified CR300 petition and standard fingerprint card with the civil division of the circuit court in Jackson County, where the arrest occurred. Confirm current clerk address, filing method, required copies, confidential filing sheet and whether CR310 is requested. The clerk assigns the new civil case number; the underlying criminal case belongs in CR300's record row.

Obtain the arrest report and certified docket/judgment showing exactly which identifying factors were falsely used. Order your fingerprint-based Missouri State Highway Patrol criminal-history record through its CJIS Division / Missouri Automated Criminal History Site and compare it with the name-based false record. Confirm Patrol search fees first. Compare your full name, sex, race, birth date, Social Security number, driver's license number, address at arrest, charged offense, arrest date, arrest county/municipality, arresting agency, and underlying case/court division. The verified petition must supply mandatory section 610.123 contents; missing contents can require dismissal. Do not guess an unknown citation, conviction date or perpetrator identity.

Document the substantial number of your identifying factors falsely attributed to the person actually arrested or convicted. No waiting period, acquittal/dismissal, no-conviction condition or general expungement lifetime limit is imposed by this route. Disputed impersonation or insufficient identity evidence requires legal help; this packet does not establish the court's finding.

Arrange three standard fingerprint cards from a local police or sheriff agency. Ask whether it takes applicant prints, can supply three cards in one visit, its cost, payment method and required identification. One card goes to the court, one is sent by the clerk to the Missouri Criminal Record Repository and one is yours to keep. These are external: obtain real fingerprints and submit the required card with the petition for identity verification. No fingerprint card, fingerprints or officer signature is manufactured. The clerk forwards the petition and card to the Missouri Criminal Record Repository.

Name every official, agency or entity holding the affected records, with complete service address. The order reaches named entities. The attached respondent schedule preserves the complete supplied list. Confirm additional record holders before signing; do not omit one to fit a form.

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The clerk issues a petition copy to each named entity and gives the prosecutor and each named entity hearing notice. The court sets a hearing no sooner than 30 days after filing, with reasonable notice; no hearing date or completed service is supplied here. Seek legal help for objections, disputed facts or a hearing.

Confirm ordinary civil filing/service costs with the clerk; no universal local total is established here. GN10 is offered as an option because this route has no statutory fee exemption. If unable to pay, request GN10 and complete current income, expenses, assets and debts, including spouse finances when married. Sign personally after review; a submitted waiver request is not approval. This route is not the section 610.140 surcharge route.

Review and personally complete the CR300 perjury signature and address block; both remain blank for execution. Leave new civil case number, Court ORI number and Offense Cycle Number to the clerk. The underlying case number remains in the offense row. CR300 prescribes no notarial acknowledgment; do not import the CR145 notarization requirement. Keep Social Security numbers and financial information in the court-required confidential process; FI-05 is confidential. Ask the clerk to confirm the FI-05 Case Type Code and Case Type Description for this section 575.120 correction action before filing; both are blank. Do not assume that XG for section 610.122 applies. The held party-code table supplies PET for petitioner and RES for respondents; attorney lines stay blank for self-representation. Ask about protected-document procedures. GN10 appears only when requested; CR310 only when the clerk expects a proposed order; FI-05 when opening a new case or required by the clerk.

CR310 is an unsigned proposed judicial instrument. Leave judicial findings/directions, judgment date and signature to the court; no result is promised. After entry, obtain the signed order, confirm clerk copies went to every named record holder and compare corrected court/repository records. Section 610.124 provides repository follow-through including its FBI request; do not assume all federal or private copies are corrected automatically. If a named record remains wrong, contact the clerk/agency with the entered order and seek counsel as needed.